

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302512	SMITH VS CRUISE AMERICA, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The Court GRANTS the requests for judicial notice. The Court OVERRULES Plaintiff's evidentiary objections. The Court SUSTAINS Defendant's evidentiary objections. The Court GRANTS the motion for summary judgment as to Issues 1 And 2. The Court finds that Issues Nos. 3 and 4 are MOOT.

REQUEST FOR JUDICIAL NOTICE

The Court GRANTS NFS's request for judicial notice of the operative Complaint filed by Plaintiff Robert Smith, on May 10, 2023, in County of Riverside, Superior Court of the State of California, Case No. CVRI2302512. (Ex. A.) (Ev. Code §§ 452, 453.)

Plaintiff asks the Court to take judicial notice of:

1. National Diabetes Statistics Report (Page 1 only), published by the Centers for Disease Control and Prevention (CDC), an operating component of the United States Department of Health and Human Services, attached hereto as Exhibit A, and available on the official United States Government website: <https://usdss.cdc.gov/diabetes/report.html>.
2. Report on Diabetic Neuropathy, published by the National Institutes of Health (NIH), an operating division of the United States Department of Health and Human Services, attached hereto as Exhibit B, and available on the official United States Government website: <https://www.niddk.nih.gov/health-information/diabetes/overview/preventing-problems/nervedamage-diabetic-neuropathies/what-is-diabetic-neuropathy>.

The Court GRANTS Plaintiff's request; the Court can take judicial notice of the existence of these documents under Ev. Code § 452 as they are official acts of the executive branch of the United States government (§ 452(c).)

EVIDENTIARY OBJECTIONS

Plaintiff's evidentiary objections

The Court OVERRULES objections to paragraphs of complaint and discovery responses.

Defendant's evidentiary objections

The Court SUSTAINS the objections to the opposing declarations of David S. Miller, Ex. D to the Declaration of David S. Miller, Declaration of Robert Smith, and King, and Declaration of Derek A. King on grounds stated.

MERITS

Moot Issues

Issue Number Three presented in this motion is MOOT; Plaintiff dismissed the third cause of action for violation of implied warranty of merchantability. Similarly, Issue Number Four is likewise MOOT because Plaintiff dismissed his demand for punitive damages against NFS.

ISSUE NO. 1: As a matter of law, NFS cannot be held liable under the theory of strict products liability as the undisputed record shows: (1) NFS is merely a provider of services and was not sufficiently connected to the alleged product's distribution or marketing enterprise to be considered part of the distribution chain; (2) NFS did not design, manufacture, own, operate, or rent the Subject Vehicle (3) NFS performed no alteration to the Subject Vehicle's relevant components complained of in Plaintiff's complaint and had no role in any alleged removal of firewall insulation; (4) NFS did not cause/create any alleged defect and thus did not cause Plaintiff's alleged injuries and (5) no defective was found as to the Subject Vehicle.

Under California law, strict products liability has been invoked for three types of product defects: (1) manufacturing defects, (2) design defects, and (3) "warning defects." (*Anderson v. Owens-Corning Fiberglas Corp.* (1991) 53 Cal. 3d at 995.) California extended its strict liability law through a stream-of-commerce approach that reaches manufacturers, retailers, distributors, and others who profit from placing defective products in commerce. The California Supreme Court articulated this policy in *Vandermark v. Ford Motor Co.* (1964) 61 Cal. 2d 256.) The doctrine, however, is not unlimited. As the California Court of Appeal stated in *Bay Summit Community Assn. v. Shell Oil Co.* (1996) 51 Cal. App. 4th 762, 774 "Courts have been mindful that the strict liability doctrine derives from judicially perceived public policy considerations and therefore should not be expanded beyond the purview of these policies. Thus, the courts have refused to hold a defendant strictly liable where the policy justifications are not applicable even if the defendant could be technically viewed as a 'link in the chain' in getting the product to the consumer market." (*Id.* at 774.) "In other words, the facts must establish a sufficient causative relationship or connection between the defendant and the product so as to satisfy the policies underlying the strict liability doctrine." (*Id.* at 776. See also, *Arriaga v. CitiCapital Commercial Corp.* (2008) 167 Cal.App.4th 1527 confirming that "[w]here these policy justifications are not applicable, the courts have refused to hold the defendant strictly liable even if that defendant could technically be viewed as a 'link in the chain' in getting the product to the consumer market.")

Here, pursuant to the above, for a strict products liability claim to survive Plaintiff must show that the NFS was sufficiently connected to the alleged product's distribution or marketing enterprise, exercised some control, or profited from placing the product in the stream of commerce. Absent this, NFS is not part of the actual distribution chain and cannot be held liable under a strict products theory of liability.

NFS is only a "provider of services" and not subject to strict products liability. The controlling California authority for post-production vehicle installer liability within the strict products framework is *Endicott v. Nissan Motor Corp.* (1977) 73 Cal. App. 3d 917. In *Endicott*, Nissan hired an independent contractor to install seatbelts in vehicles arriving in California. When the plaintiff was injured by an allegedly defective seatbelt, the court held that the installer was not subject to strict liability. The court found "no evidence that Installer was an integral part of the overall marketing enterprise that produces Datsun automobiles or that it played any significant role in placing Datsun's product in the stream of commerce that could render Installer liable in tort for defects in Datsun's automobiles. As a mere provider of services Installer is not liable for defects in the product." (*Id.* at 930.) Notably, the California Court of Appeal in *Petitpas v. Ford Motor Co.* (2017) 13 Cal.App.5th 261 applied the *Endicott* analysis to affirm summary adjudication in favor of an Exxon-operated service station that provided vehicle maintenance services using replacement parts, holding the station was "a 'provider of services rather than a seller or distributor of asbestos-containing vehicle parts.'" (*Petitpas*, *supra* 13 Cal. App. 5th at 274.)

In addition, California Courts use the predominant purpose test as illuminated in *Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal. App. 3d 340, 342. *Pierson* provides the framework for this analysis: "The doctrine of strict liability in tort applies to producing and marketing enterprises responsible for placing products in the stream of commerce." (*Id.*) "Courts have also declined to apply strict liability where the transaction's service aspect predominates and any product sale is merely incidental to the provision of the service" strict liability does not apply. (*Pierson v. Sharp Memorial Hospital, Inc.*, (1989) 216 Cal.App.3d 340.)

Here, as noted by NFS, NFS's business is installing components at customers' direction; it is not in the business of selling vehicles, thermal insulation systems, or any component alleged to be defective here. (UMF Nos. 1-17) NFS is a post-production upfitter hired by Ford to attach customer-specified components to Ford vehicles. (UMF Nos. 7-17) NFS attached sound insulation, a wiper blade, and a heat shield component per its customer's directions, using components it installed (not components it manufactured). (UMF Nos. 11-13) NFS then returned the vehicle to Ford and had no further involvement. (UMF Nos. 7-17) Any components NFS attached were entirely incidental to its installation services as requested by Ford/Cruise. (UMF Nos. 7-17) As such, NFS was not an integral part of the overall marketing enterprise that produces Ford vehicles, and it did not play any significant role in placing Ford/Cruise's product in the stream of commerce. (UMF Nos. 7-17) As such, NFS is merely a Provider of Services and is not in the chain of distribution. (UMF Nos. 7-17)

NFS did not create or cause the alleged defect and there is no evidence to the contrary. "Under California law, the elements of a strict products liability cause of action are "a defect in the manufacture or design of the product or a failure to warn, causation, and injury." (*Nelson v. Superior Ct.* (2006) 144 Cal. App. 4th 689, 695.) Here, Plaintiff's lack of evidence that NFS created/caused the alleged defect which then in turn allegedly caused Plaintiff's alleged injuries is an independent ground to grant summary

judgment. Under *Arriaga v. CitiCapital*, "the facts must establish a sufficient causative relationship or connection between the defendant and the product so as to satisfy the policies underlying the strict liability doctrine." (*Arriaga v. CitiCapital Commercial Corp.* (2008) 167 Cal.App.4th 1527.)

Also, under CCP § 437c(p)(2), the plaintiff "shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists. Therefore, once NFS raises the issue of causation on a motion for summary judgment, the burden shifts to the plaintiff to demonstrate a genuine issue of material fact as to causation. (See generally, *Andrews v. Foster Wheeler LLC* (2006) 138 Cal. App. 4th 96; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826.)

Here, Plaintiff alleges that Defendants removed or caused to be removed insulation beneath the front passenger floorboard which then caused Plaintiff's alleged injury. (UMF Nos. 1-6) The undisputed facts establish that NFS's work consisted entirely of installing components: sound insulation material, a windshield wiper blade, and a minor heat shield component. (UMF Nos. 7- 17) NFS did not remove or alter any existing components. (UMF Nos. 7-17) NFS did not remove the fire-wall insulation in, around and/or under the front passenger floorboard area that Plaintiff alleges created a defective and dangerous condition in which the passenger floorboard area that became dangerously hot while the vehicle was being used in its usual manner. (UMF Nos. 1-3; 7-17) Plaintiff has no evidence, no expert testimony, no physical evidence, no documents, tying the alleged insulation removal to NFS's work. (UMF Nos. 1-17) This is not a case involving fungible goods or market share liability. It is a case where Plaintiff must specifically identify that NFS's conduct caused the defect which in turn caused his alleged injury, and no such evidence exists and thus the strict products claim must be dismissed.

Plaintiff has not established a defect. Under *Taylor v. Elliott Turbomachinery Co.*, a plaintiff must establish the defendant's connection with the injury-causing product; a defendant who neither manufactured, sold, nor supplied the product that caused the injury is not strictly liable. (*Taylor v. Elliott Turbomachinery Co.* (2009) 171 Cal. App. 4th 564, 575.)

Here, Ford inspected the Subject Vehicle following the incident and identified no defect, then returned it to service. (UMF Nos. 18-21) This post-incident inspection further undermines any causal chain running from NFS's January 2017 work to Plaintiff's June 2021 incident. And because the vehicle passed through multiple other entities' hands over four years between NFS's work and the incident, Plaintiff cannot establish the necessary causal connection between NFS's conduct and the alleged injury thus the strict products claim must be dismissed.

ISSUE NO. 2: As a matter of law, NFS did not have a duty to warn of the alleged defect as alleged in Plaintiff's Second Cause of Action for Negligence because any defect was

not known or knowable to NFS. Consequently, Plaintiff's Second Cause of Action for Negligence fails.

A negligence-based failure-to-warn claim requires proof that the defendant knew or should have known of a danger associated with the product's reasonably foreseeable use, and that the danger was known or knowable at the time. (*Powell v. Standard Brands Paint Co.* (1985) 166 Cal.App.3d 357; *Webb v. Special Electric Co., Inc.* (2016) 63 Cal.4th 167.) Where a danger is not known or knowable, no duty to warn arises. (*Ibid.*)

California courts evaluate this question in light of the expectations of the product's ordinary users. A product presents a duty to warn only where it poses a risk that would not be readily recognized in ordinary use. (*Gonzales v. Carmenita Ford Truck Sales, Inc.* (1987) 192 Cal.App.3d 1143; *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548.) In assessing whether a danger would be recognized, courts consider how the product is used, the nature and magnitude of the risk, and whether a warning would meaningfully reduce the risk of injury. (*Trejo v. Johnson & Johnson* (2017) 13 Cal.App.5th 110; *Buckner v. Milwaukee Electric Tool Corp.* (2013) 222 Cal.App.4th 522; *McCabe v. American Honda Motor Co.* (2002) 100 Cal.App.4th 1111.)

Defendant NFS met its burden under CCP § 437c(p)(2) and the burden shifted to Plaintiff to establish a triable issue. Plaintiff has not met this burden.

"An issue of fact can only be created by a conflict of evidence. It is not created by speculation, conjecture, imagination or guesswork." (*Sinai Memorial Chapel v. Dudler* (1991) 231 Cal.App.3d 190, 196.) Plaintiff's Opposition never confronts this fundamental principle because it cannot. Plaintiff has not identified any admissible facts establishing that National Fleet Services of Ohio, LLC ("NFS") created the alleged defect, altered the component identified as defective, or owed any duty with respect to the condition that allegedly caused Plaintiff's injuries.

Here, Plaintiff has not submitted any evidence establishing a connection between NFS and the alleged defect, instead relying on conjecture:

As to ISSUE 1 - Strict liability reaches only to those "responsible for placing products in the stream of commerce," but the doctrine "is ordinarily inapplicable to transactions 'whose primary objective is obtaining services,'" and to transactions in which the "service aspect predominates and any product sale is merely incidental to the provision of the service." (See generally, *Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340.)

Again, California courts have repeatedly rejected efforts to extend strict products liability to entities whose role is the performance of services rather than the manufacture, distribution, or sale of a product. Under the "predominant purpose" test, the incidental furnishing, installation, or handling of a product does not transform a service provider into a participant in the chain of distribution. (See *Ferrari v. Grand*

Canyon Dories (1995) 32 Cal.App.4th 248; *Hennigan v. White* (2011) 199 Cal.App.4th 395; *Ontiveros v. 24 Hour Fitness* (2008) 169 Cal.App.4th 424.).

Here, as discussed above, NFS neither designed, manufactured, engineered, marketed, sold, nor selected the allegedly defective components. It merely installed three customer-specified items: a sound insulation material, a windshield wiper blade, and a minor heat-shield component using parts supplied by others and according to the specifications and directions of others before returning the vehicle to Ford. (NFS Motion for Summary Judgment, p. 10.) NFS exercised no control over the design of the vehicle, the selection of its component parts, or the engineering decisions alleged to have caused Plaintiff's injuries. It derived no profit from placing any product into the stream of commerce beyond compensation for the labor it performed. Because NFS acted solely as a service provider whose limited installation work was merely incidental to the overall manufacture of the vehicle, it is not a "seller" or other entity subject to strict products liability as a matter of law.

Strict liability is not imposed merely because a party at some point touched, handled, or worked on a product. Rather, the doctrine is intended to place the cost of injuries on those entities that create the market for the product, profit from its sale, and are in a position to influence its safety before it reaches the consuming public.

Accordingly, a non-manufacturer outside the vertical chain of distribution may be held strictly liable only where (1) it "received a direct financial benefit from its activities and from the sale of the product"; (2) its "role was integral to the business enterprise such that the defendant's conduct was a necessary factor in bringing the product to the initial consumer market"; and (3) it "had control over, or a substantial ability to influence, the manufacturing or distribution process." (*Bay Summit, supra*, 51 Cal.App.4th at p. 772.) Those factors are not alternative theories, they reflect the policy considerations that justify extending strict liability beyond manufacturers and sellers. Plaintiff cannot satisfy any of them.

NFS establishes that (1) NFS received no financial benefit from the sale of the completed vehicle; and (2) NFS exercised no control and had no ability to exercise control over the allegedly defective design or manufacturing decisions identified by Plaintiff's own expert. NFS did not design or manufacture the vehicle, the doghouse assembly, the seal, the wiring harness, or the latch mechanism. It had no authority to alter Ford's engineering specifications or redesign any component. (NFS Motion for Summary Judgment at p. 10.)

Here, Plaintiff's expert attributes the alleged defect entirely to Ford's design decisions and to Thor's installation of the wiring harness—not to anything designed, manufactured, or controlled by NFS.

Plaintiff's attempt to manufacture strict liability from NFS's "unit price" billing is equally unavailing. A billing methodology does not transform a service contract into a

product sale, nor does it convert a contractor performing customer-directed labor into a manufacturer or distributor.

As to ISSUE 2 - because NFS is a service provider outside the stream of commerce, because Plaintiff has produced no evidence that NFS created or contributed to the alleged defect, and because NFS owed no duty to warn of a condition it neither created nor controlled, Plaintiff has failed to raise a triable issue of material fact. A claim that a service provider failed to warn of a danger it did not create is "classic nonfeasance," for which there is no liability absent a legally recognized special relationship. (*Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1203.) As the court explained, "[a] person who has not created a peril is not liable in tort merely for failure to take affirmative action to assist or protect another unless there is some relationship between them which gives rise to a duty to act." (*Id.*) While liability may arise when a defendant creates the danger, California courts do not impose liability where the defendant simply failed to warn of a condition created by someone else.

The law is equally settled as to when a service provider owes a duty to third parties injured by equipment it serviced. Such a duty arises only where the service provider (1) negligently performed the work it undertook, (2) negligently failed to make a requested repair, (3) contracted to inspect and maintain the equipment, or (4) voluntarily assumed the owner's duty to inspect or undertook a systematic inspection. (*Seo, supra*, 97 Cal.App.4th at pp. 1203-1205.) Outside those limited circumstances, a service provider "owes no duty to a third party to inspect the equipment and advise the owner of any design defects," because "[t]he responsibility for such design defects properly lies with the manufacturer and installer of the equipment." (*Id.* at p. 1205.) Just as important, the court expressly rejected the argument Plaintiff advances here: a repairer's "superior knowledge" or ability to recognize a design defect "is not sufficient in and of itself to create a duty to third parties." (*Ibid.*)

Plaintiff cannot satisfy any of the circumstances identified in *Seo*. NFS did not negligently perform the work it was retained to perform. Plaintiff's own expert does not contend otherwise. Instead, Plaintiff's expert unequivocally attributes the alleged defect to Ford's vehicle design and doghouse seal, and to Thor's installation of the wiring harness and latch not to any work performed by NFS. (Plaintiff's Opposition to Defendant's Separate Statement of Undisputed Material Facts at 41-42.) NFS did not fail to perform a requested repair because no repair was requested. It never contracted to inspect or maintain the vehicle, never undertook a systematic inspection, and never assumed Ford's or Cruise's responsibility to identify or correct design defects. Rather, NFS performed discrete, customer-directed installation work in January 2017, using components specified by others, and returned the unfinished vehicle to Ford for continued manufacturing. (NFS Motion for Summary Judgment at p. 10.)

Unable to establish any recognized duty, Plaintiff attempts to substitute opportunity for obligation. Plaintiff argues that because NFS worked in the cab area and installed a heat-shield component, it should have recognized the alleged defect and warned Cruise. That argument is foreclosed by *Seo*. The mere fact that a service

provider had an opportunity to observe a condition or even possessed sufficient expertise to recognize a possible design defect does not create a legal duty to inspect, discover, or warn of defects it neither created nor controlled. Were the rule otherwise, every mechanic, installer, subcontractor, or repair technician would become the guarantor of every manufacturer's design decisions simply because they happened to work near the allegedly defective component. California law imposes no such sweeping obligation.

Accordingly, the Court GRANTS the motion on this issue as Plaintiff has failed to establish a triable issue. Plaintiff seeks to impose a duty on NFS to warn of defects that Plaintiff's own expert attributes exclusively to other entities. A defendant cannot be liable for failing to warn of dangers it did not create, did not control, and had no duty to inspect.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2303819	MURILLO VS INNOVATIVE HORIZONS CHARTER SCHOOL	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE

Tentative Ruling: The Court CONTINUES Defendant's Unopposed Motion to Compel Further Responses to Form Interrogatories, Set One, to October 6, 2026, at 8:30 a.m., due to insufficient meet-and-confer efforts. Defendant shall file and serve a declaration at least 10 days before the continued hearing date, detailing the meet-and-confer efforts and delineating what, if any, issues remain.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2303819	MURILLO VS INNOVATIVE HORIZONS CHARTER SCHOOL	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling: The Court takes this motion off calendar without prejudice. The Court's May 28, 2026, order explicitly identified the deficiency in the Ter-Mambreyan Declaration: no showing of compliance with the statutory requirement to meet and confer in person, by telephone, or by videoconference. The Court ordered AFSC to file and serve a declaration detailing the meet-and-confer efforts at least 10 days prior to the continued hearing. The Court specifically warned that continued non-compliance may result in the Court taking the matter off calendar.

AFSC did not file the ordered supplemental declaration by June 28, 2026 (ten days before the July 8 hearing) addressing the deficiency. AFSC filed a reply on June 30, 2026, but that reply does not include a supplemental declaration addressing the meet-and-confer requirement.